

In Re: AI Web Scraping, Data Intermediaries & Privacy Framework

Citation: 2026 SCC OnLine SC 18 | *Court:* Supreme Court | *Year:* 2026

Coram: 3-Judge Bench (Hon'ble Supreme Court of India) | *Subject:* Digital Law & DPDP Act | *Provisions:* DPDP Act 2023 Sec 4-7 & IT Act Sec 79

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Automated web scraping of personal data for commercial AI training without explicit statutory consent violates the Digital Personal Data Protection (DPDP) Act, 2023. Intermediary safe harbour under Section 79 IT Act does not immunize commercial algorithmic harvesting without valid data principal authorization.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding DPDP Act 2023 Sec 4-7 & IT Act Sec 79. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to DPDP Act 2023 Sec 4-7 & IT Act Sec 79.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Automated scraping of personal data for commercial AI model training requires clear, unbundled consent under Section 6 of the DPDP Act 2023. Intermediary safe harbour under Section 79 of the Information Technology Act cannot be invoked to shield commercial algorithmic harvesting without authorization.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Mandated transparent disclosure of training datasets containing personal data.
- â€¢ Established distinction between public access and commercial algorithmic processing.
- â€¢ Formulated judicial guidelines balancing technological innovation with constitutional digital privacy.